

NON-DISCLOSURE and NON-CIRCUMVENTION AGREEMENT

Between

Namhost Internet Services (Pty) Ltd

(Registration Number: 2016/492550/07)

and

Saulech (Pty) Ltd

(Registration Number: 2003/006814/01)

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1. PARTIES

1.1.

Registered name and registration number Namhost Internet Services (Pty) Ltd (Registration Number: 2016/492550/07)	
Street address 24 Black Eagle Rd Onrus Hermanus 7201	Postal address 24 Black Eagle Rd Onrus Hermanus 7201
Contact person : Nico Lourens	
Telephone number : +27 82 667 5268	
E-mail address : nico@namhost.com	

1.2.

Registered name and registration number Sutech (Pty) Ltd (2003/006814/07)	
Street address 34 Stekroos Avenue Beaunanda Krugersdorp 1734	Postal address 34 Stekroos Avenue Beaunanda Krugersdorp 1734
Contact person : Charmine Mameziel.	
Telephone number : 012 030 9144	
E-mail address : charmine@sutech.net	

2. DEFINITIONS

In this Agreement the following words and expressions shall have the meaning hereafter assigned to them (unless they are contrary to the contents or used within another context), namely:

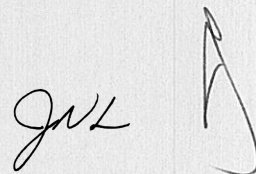
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| 2.1. "Agreement" | means this document; |
| 2.2. "Confidential Information" | means without limitation, all information of whatsoever nature disclosed by the Disclosing Party to the Receiving Party relating to trade secrets, know-how, strategic objectives, research, business activities, business relationships, products or proposed products, proposals, pricing details, financial documents, strategies, customers and clients, process, technique, software, process, technology, recipes, designs, information, equipment, materials, intellectual property rights or any combination of the foregoing used and/or possessed by the Disclosing Party; |
| 2.3. "Disclosing Party" | means the Party disclosing the Confidential Information to the Receiving Party; |
| 2.4. "Laws" | mean the laws of South Africa; |
| 2.5. "Parties" | means the signatories to this Agreement, and "Party" means any one of them as the context may indicate; |
| 2.6. "Receiving Party" | means the Party receiving Confidential Information from the Disclosing Party; and |
| 2.7. "Signature Date" | means the date of signature of the last Party signing this Agreement. |

3. INTRODUCTION

- 3.1. The Parties wish to collaborate on web development and/or web hosting projects ("**the Projects**").
- 3.2. Pursuant to collaborations referred to in clause 3.1 above, the Disclosing Party has disclosed and/or may disclose Confidential Information to the Receiving Party.
- 3.3. The Disclosing Party has a proprietary interest in the Confidential Information and is entitled to protect and preserve such Confidential Information by means of the undertakings provided for in this Agreement.

4. CONFIDENTIALITY UNDERTAKING

- 4.1. The Receiving Party hereby agrees and undertakes that it shall not use or disclose to any third party any of the Confidential Information without the Disclosing Party's prior written consent.
- 4.2. Without derogating from the generality of clause 4.1, the Receiving Party shall:



- 4.2.1. not use the Confidential Information for the benefit of itself, directly or indirectly, or any third party or in any manner prejudicial to the Disclosing Party;
 - 4.2.2. not disclose to any third party the fact that the Confidential Information has been made available to it;
 - 4.2.3. treat as strictly secret and confidential all the Confidential Information and shall use its best endeavours to protect such Confidential Information by applying thereto no lesser security measures and a degree of care than those which it applies to its own Confidential Information, and shall not disclose or use any of the Confidential Information, without the prior written consent of the Disclosing Party, provided that the Receiving Party shall be liable for any breach of the undertakings contained in this Agreement by any third parties, agents, representatives or professional advisers appointed by the Receiving Party in respect of the Projects; and
 - 4.2.4. not utilise, exploit, duplicate performance characteristics of, or create a derivative work based upon the Confidential Information disclosed to it.
- 4.3 This Agreement shall be binding on and enforceable by the trustees, permitted assigns, liquidators or other legal successors of the Parties as fully and effectually as if they had signed this Agreement in the first instance and reference to any Party shall be deemed to include such Party's trustees, permitted assigns, liquidators or other legal successors, as the case may be.

5. EXCLUDED CONFIDENTIAL INFORMATION

The Parties record and agree that the Confidential Information does not include information which:

- 5.1 has come into the public domain prior to, or after the disclosure thereof and in such case through no wrongful act of the Receiving Party; or
- 5.2 is already known to the Receiving Party, prior to the receipt of the Confidential Information; or
- 5.3 has been lawfully received from a third party without restrictions or breach of this Agreement or without breach of any other duty of confidentiality relating to the Confidential Information of which the Receiving Party has knowledge; or
- 5.4 has been or is published without violation of this Agreement; or
- 5.5 is approved for release or use by written authorisation of the Disclosing Party.

6. PROPRIETARY RIGHTS

- 6.1. The Receiving Party is aware that the copying or reproduction in any form of the whole or any part of the Disclosing Party's Confidential Information is expressly forbidden, except in each instance, with the prior written consent of the Disclosing Party, and that any copies or reproductions so made or reduced to writing shall be the property of the Disclosing Party.

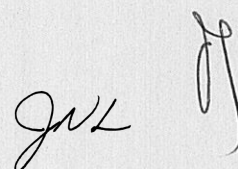
- 6.2. The Receiving Party shall keep an accurate and up-to-date record of the Confidential Information furnished to it and of the location of such Confidential Information.
- 6.3. The Disclosing Party may for whatsoever reason request the Receiving Party to return all Confidential Information which has been disclosed to it and in so far as it is not possible to deliver any such Confidential Information, the Receiving Party shall destroy such Confidential Information.
- 6.4. The Receiving Party shall conduct its affairs and take all reasonable steps to ensure that it is not called upon to disclose any of the Confidential Information by any third party.
- 6.5. In the event that the Receiving Party or anyone to whom the Receiving Party discloses the Confidential Information pursuant to this Agreement nevertheless becomes legally compelled to disclose any of the Confidential Information, the Receiving Party shall provide the Disclosing Party with prompt notice so that the Disclosing Party may seek a protective order or other appropriate remedy and/or waive compliance with the provisions of this Agreement.
- 6.6. If, failing the entry of a protective order, the obtaining of any other remedy or the receipt of a waiver hereunder, the Receiving Party is, in the reasonable opinion of the Receiving Party's legal counsel, compelled to disclose Confidential Information, the Receiving Party shall disclose only that portion of the Confidential Information which such counsel advises in writing that the Receiving Party is compelled to disclose.
- 6.7. The Receiving Party shall exercise its best efforts to obtain or assist the Disclosing Party in obtaining a protective order or other reliable assurance that confidential treatment will be accorded to the Confidential Information.

7. DURATION

This Agreement shall commence on the Signature Date and shall remain in force for a period of 1 (one) year

8. NON CIRCUMVENTION AND INDEMNITY

- 8.1. The Receiving Party agrees not to circumvent, avoid, bypass, or obviate, directly or indirectly, the intent of this Agreement. Should the Receiving Party breach this term then 8.2 will apply.
- 8.2. Without derogating from any of the provisions of this Agreement, should the Receiving Party (the "**Defaulting Party**") wilfully or negligently breach its obligations in terms of this Agreement, then the Defaulting Party hereby indemnifies, and agrees to hold harmless, the other Party (the "**Aggrieved Party**") against any and all loss, damage, expense or cost suffered or incurred by the Aggrieved Party as a direct result of such breach by the Defaulting Party. The Defaulting Party shall pay the amount of such loss, damage, expense or cost plus a gross-up for any tax levied upon such amount to the Aggrieved Party upon first demand, provided that reasonable proof of the quantum of such loss, damage or expense has been provided to the Defaulting Party.



9. BREACH

- 9.1 Without prejudice to the other rights of the Disclosing Party, in the event of any unauthorised disclosure or use of the Confidential Information which is or is reasonably likely to constitute a breach of any provision of this Agreement, the Receiving Party shall immediately notify the Disclosing Party in writing and take such steps as the Disclosing Party may reasonably require in order to remedy or mitigate the effects of such actual or threatened breach.
- 9.2 The Parties agree that cancellation is not an appropriate remedy for breach of this Agreement and this Agreement may not be cancelled or terminated save by written agreement between the Parties.
- 9.3 The Parties furthermore agree that damages alone may not be an adequate remedy for any breach of the obligations set out in this Agreement and that the remedies of interdict, specific performance and any other equitable relief are appropriate for any threatened or actual breach of this Agreement.

10. GOVERNING LAW AND JURISDICTION

- 10.1. This Agreement shall be construed and governed by the laws of the Republic of South Africa.
- 10.2. The Parties hereby consent to the jurisdiction of the High Court of South Africa (Western Cape Division, Cape Town) in respect of all disputes which may arise between them in relation to or arising out of the implementation of this Agreement;
- 10.3. Any dispute arising from or in connection with this Agreement, which cannot be settled amicably by the Parties, shall be finally resolved in accordance with the rules of the Arbitration Foundation of Southern Africa ("AFSA") by an arbitrator or arbitrators appointed by the AFSA. The arbitration will be held in Cape Town in accordance with the formalities of AFSA rules and procedure settled by the arbitrator and may be held in an informal and summary manner, on the basis that it will not be necessary to observe or carry out the usual formalities or procedures, pleadings or the strict rules of evidence.

11. NOTICES AND DOMICILIA

The Parties choose as their *domicilia citandi et executandi* for all purposes under this Agreement, whether in respect of court process, notices or other documents or communications of whatsoever nature, the addresses set out in clause 1 of this Agreement.

12. WARRANTIES

Unless otherwise specifically stated in writing, the Disclosing Party makes no representation, warranty, assurance, guarantee or endorsement to the Receiving Party concerning the Confidential Information, whether with regard to its accuracy, completeness or otherwise and the Disclosing Party shall have no liability towards the Receiving Party or any other party in connection therewith.

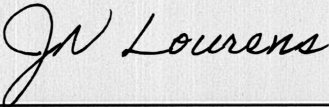
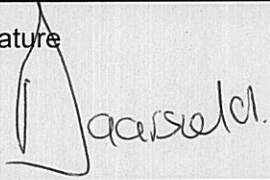
Handwritten signature and initials in black ink, located at the bottom right of the page.

13. COSTS

Each Party shall bear its own legal costs relating to the negotiation, preparation, settling, signing and implementation of this Agreement.

14. GENERAL

- 14.1. Neither Party may rely on any representation, which allegedly induced that Party to enter into this Agreement, unless the representation is recorded in this Agreement.
- 14.2. This document contains the entire agreement between the Parties and neither Party shall be bound by any undertakings, representations, warranties, promises or the like not recorded herein.
- 14.3. This Agreement may be signed in one or more counterparts, each of which shall be deemed to be an original.
- 14.4. The parties shall at all times act in good faith towards each other and shall not do anything which may bring the other party or its reputation into disrepute.

Signature for Namhost Internet Services (Pty) Ltd		
Signature 	Date 10/03/2023	Place Somerset West
Full name of signatory Nico Lourens		Capacity Managing Director
Signature for		
Signature 	Date 10-03-2023	Place Krugersdorp
Full name of signatory Rian van Jaarsveld		Capacity Managing Director